

**UNIVERSITY OF PORT HARCOURT
CENTRE FOR CONTINUING EDUCATION (CCE)
DIL 226.1 - INTRODUCTION TO LEGAL METHOD**

TOPIC: NATURE AND FUNCTIONS OF LAW

NATURE OF LAW

Law is so powerful as it affects all aspects of our lives, from the day we are born till after our death. Law regulates and influences the conduct of human activities whether on land, sea, and air. Law in essence, is a normative and prescriptive science. It lays down norms and standards for human behaviour in a set of specified situations. It is a 'rule of conduct or action' prescribed or formally recognised as binding or enforced by a 'controlling authority'.

The nature of law is complex and multifaceted. It is a system of rules and guidelines, enforceable by an authority, which governs the behaviour of individuals within a society. It is a form of social control and it helps to maintain order and regulate human interaction.

Law is universal in nature, it presupposes that law is a unique social-political phenomenon, with more or less universal characteristics that can be discerned through philosophical analysis.

MEANING/DEFINITION OF LAW

There is no universal definition of what law is. Different authors have provided various definitions of law. Some of these definitions were attempted at different periods of history. The Roman jurist Salmond defined law in light of its idealistic nature as the body of principles recognised and applied by the state in the administration of justice. However, Salmond's definition was criticised as not

defining the expression justice by Keeton. In his view, what is considered just at one time has frequently not been so considered at another time. Dean Roscoe

Pound also criticised this definition of Salmond as reducing law to a mass of isolated decisions and the law in that sense to be an organic whole.

John Austin an English jurist defined law as the command of the sovereign backed by sanction. According to Austin, a law, in the strict sense is a general command of the sovereign individual or the sovereign body. Issued to those in subjectivity and enforced by the physical power of the state. In Austin's view, "law is the aggregate of rules set by men politically superior or sovereign to men as politically subject." Austin says, "A law is a command which obliges a person or persons to a course of conduct".

Austin's definition of law is subjected to criticism because it ignores completely the moral and ethical aspects of law and unduly emphasises the imperative character of law.

Prof H.L.A Hart also defined law as the combination of primary rules of obligations and secondary rules of recognition.

In the middle of the nineteenth century, law was defined by jurists to reflect the effect of law on society, the approach takes law as an instrument of social progress.

Ihering defines law as 'the form of Guarantee of the conditions of life of society, assured by state's power of constrain. He says the law is a means to an end and the end of the law is to serve its purpose which is social, not individual.

Again, Dean Roscoe Pound defined law as a social institution to satisfy social wants. He says the law is a social engineering, which means that law is an instrument to balance between competing or conflicting interests.

Similarly, Dias defined law as consisting largely of "ought" (normative) Propositions prescribing how people ought to behave the "ought" of laws are variously dictated by social, moral, economic, political and other purposes.

In summary, the term law is used to mean three things: First, it is used to mean "legal order". It represents the regime of adjusting relations and ordering conduct by the systematic application of the force of organized political society. Secondly, law means the whole body of legal Precepts which exist in a politically organized society. Thirdly, law is used to mean all official control in a politically organized society. This led to the actual administration of Justice as contrasted with the authoritative material for the Guidance of Judicial action. Law in its narrowest or strict sense is the civil law or the law of the land.

AIM/PURPOSE

The aim of the law is the adjustment of one's freedom to those of other members purpose of the community. Jeremy Bentham gave a very practical version of the of the law, which according to him, is maximization of the happiness of the greatest number of the members of the community.

FUNCTIONS OF LAW

Generally, the function of law is to ensure the well-being of society, it is an institution for the protection of individual's rights.

Roscoe Pound attributed four major functions of law namely:

- (1) maintenance of law and order in society;
- (2) maintaining the status quo in society;
- (3) ensuring maximum freedom of individuals; and

(4) satisfying the basic needs of the people.

The object of law is to ensure justice. The justice may be either distributive or corrective. **Distributive** justice seeks to ensure the fair distribution of social benefits and burdens among the members of the community. **Corrective** justice, on the other hand, seeks to remedy the wrong. Thus, if a person wrongfully takes possession of another's property, the court shall direct the former to restore it to the latter. This is corrective justice. Rule of law is the sine qua non for even-handed dispensation of justice. It implies that everyone is equal before the law and the law extends equal protection to everyone,

It must, however, be stated that justice alone is not the only goal of law. The notion of law represents a basic conflict between two different needs, namely, the need for uniformity and the need for flexibility. Uniformity is needed to provide certainty and predictability. That is, where laws are fixed and generalized, the citizen can plan his/her activities with a measure of certainty and predict the legal consequence of his/her conduct. This is even more necessary in the case of certain laws, notably, the law of contract or property. Uniformity and certainty of rules of law also bring stability and security to the social order.

Today the following are taken as important functions of law.

A) **Social control** - members of the society may have different social values, various behaviours and interests. It is important to control those behaviours and to inculcate socially acceptable social norms among the members of society. There are informal and formal social controls. Law is one of the forms of formal social control. Lawrence M. Freedman explains the following two ways in which law plays an important role in social control: first, the law specifies rules and norms that are essential for society and punishes deviant behaviour. "Secondly, the legal system carries out many rules of social control. Police arrest burglars, prosecutors

prosecute them, courts sentence them, prison guards watch them, and parole boards release them.

B) Dispute settlement

Disputes are unavoidable in the life of society and it is the role of the law to settle disputes. Thus, disagreements that are justiciable will be resolved by law in court or out of court using alternative dispute settlement mechanisms.

C) Social change

Several scholars agree about the role of law in modern society as an instrument for social change. Law enables us to have purposive, planned, and directed social change. The flexibility of law provides some measure of discretion in law to make it adaptable to social conditions. If the law is rigid and unalterable, it may not respond to changes spontaneously, which may lead to resentment and dissatisfaction among the subjects and may even result in violence or revolution. Therefore, some amount of flexibility is inevitable in law.

Classification of law

It should be noted that while the law is being classified, it is impossible to classify them into watertight compartments, as they often overlap. The major classifications are as follows.

1. Private law and public law.
2. Civil law and criminal law.
3. Civil law and common law.
4. Municipal law and international law.
5. Substantive law and adjectival law.

6. Customary law and non-customary law.

Private law and public law: Private law is the law which regulates the conduct of persons in their interpersonal dealings, conferring rights and obligations. It includes areas of the law like property law, law of contract, tort, equity and trust, etc. Public law has to do with law primarily concerned with the smooth running of the machinery of the state and it caters for situations in which the smooth running of the state or the state's interests are threatened. Public law includes constitutional law, administrative law, criminal law, revenue law, etc. As stated earlier, these classifications are not watertight and may overlap. An example is a case where A steals B's car. It may fall under public law as a crime of stealing, or under private law as the tort of conversion.

Civil law and Criminal law: Civil law is mainly concerned with private rights and obligations. Such actions are often initiated by private persons, although in appropriate cases the government may also initiate or defend such actions as juristic persons. Whoever commences a civil action is usually referred to as a plaintiff, or a petitioner in divorce, election and winding up processes where the action is commenced by petition, while the adverse party is known as the defendant, or respondent, as the case may be. The purpose of a civil action is usually for the plaintiff to get compensated either through damages or injunctions.

Criminal law, on the other hand, is the law that has to do with crime. Actions are usually commenced by the state to punish wrongdoers either through imprisonment or the payment of fines. In other words, a crime is punishable at the instance of the State. Crimes may either be minor offences, if the punishment is imprisonment less than six months, misdemeanours if it attracts imprisonment for up to six months but less than three years, and it is a felony if the commission of the crime attracts three years of imprisonment without proof of previous conviction.

Where a conduct amounts to both a crime and a civil wrong, the victim of the wrongful conduct can pursue the criminal aspect and his civil remedy concurrently or alternatively. The former position according to the rule in *Smith v. Selwyn* was that a person must first be tried completely for the criminal aspect of a case before a civil action could be brought if there were both civil and criminal elements in the case. The rule has now been abolished and both actions may be brought simultaneously or the civil action may be brought first. For example; if A slaps B, it would constitute the tort of battery which is civil law while also constituting the crime of assault.

Civil law and common law: Civil law in this sense refers to the system which developed in Rome. It is a system in which the laws are codified and the judiciary practices an inquisitorial system where they are allowed to descend into the arena and inquire into the facts of a case.

Common law, on the other than, refers to the system which was developed from the English system. There is great emphasis on judicial precedents and the judges are not expected to descend into the arena and are instead to be unbiased umpires.

Municipal law and international law: Municipal law is the law which operates within a nation. Laws made by countries are limited by the territorial limits of the countries. An example of this is the Nigerian Criminal Code which is only applicable in Nigeria and not outside Nigeria. On the other hand, international law refers to the law which regulates the relationships between states. These laws are usually made up of international customs, treaties, bilateral agreements and conventions. A good example is the African Charter of Human and People's Rights which is applicable to all 54 African states that have ratified the charter.

Substantive law and adjectival law: Substantive law refers to the rules of law and legal principles that define the extent of legal rights and obligations in different areas of law. Questions as to the validity of a contract, the elements of an offence

in criminal law, etc., all have to do with substantive law. It includes constitutional law, administrative law, law of contract, criminal law, law of tort, etc. Procedural law, which is also referred to as adjectival law, involves the rules through which an action may be brought and disposed with. This includes the law of evidence.

Customary law and non-customary law: Customary law refers to the indigenous laws of the people, although Islamic law is also taken to be customary law even though it is not indigenous. Customary laws have to be proved before they can be admissible, and they must not be against public policy, in contradiction with written law, or repugnant to natural justice, equity and good conscience. Non-customary law refers to every law which is not customary law. This includes English law, local legislation and case law. Local legislation has prominence over every other law.

Sources of Nigerian law.

The source of anything refers to where it is gotten from. The expression "sources of Nigerian law" is capable of several meanings, depending on the context in which it is used. It may refer to the formal source, the material source, the historical source and the legal source. The formal source of law is the very foundation of the entire legal order, the ultimate fountain from which a particular rule derives its binding authority as law. An example of this is the Nigerian constitution which is the grundnorm. The material source refers to the written text in which it can be obtained. This may come in the form of statute books, law reports, etc. The historical source refers to the historical situation which led to the creation of laws. The legal sources are the accepted processes through which rules are validated as having the binding force of law. The main concentration for the purpose of this study would be placed in the legal sources and they are as follows.

1. English law

- a. English enactments extended to Nigeria before her independence
- b. Received English Law
 - i. The Common Law
 - ii. The doctrines of equity
 - iii. Statutes of general application in force in England on the 1st day of January, 1990
 - iv. Statutes and subsidiary legislation on specified matters.

2. Nigerian Legislation

3. Nigerian Case Law

4. Nigerian Customary Law

5. International Law

Note: See the Diagram that graphically represents this information.